

Lucky Singh Baghel @ Tinku vs The State Of Madhya Pradesh on 19 July, 2023

Author: Vishal Dhagat

Bench: Vishal Dhagat

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE VISHAL DHAGAT
ON THE 19th OF JULY, 2023
MISC. CRIMINAL CASE No. 15868 of 2023

BETWEEN: -
LUCKY SINGH BAGHEL @ TINKU S/O SHRI
PUSHPENDRA SINGH BAGHEL, AGED ABOUT 30 YEARS,
OCCUPATION: FARMING RESIDENT OF- VILLAGE
JAMUNA TOLA, POLICE STATION- TALA POST-
LALITPUR, TEHSIL- AMARPATAN, DISTRICT SATNA
(MADHYA PRADESH)

(BY SHRI ARUNODAYA SINGH - ADVOCATE)

AND
THE STATE OF MADHYA PRADESH THROUGH THE
STATION HOUSE OFFICER POLICE STATION
GOVINDGARH DISTRICT REWA (MADHYA PRADESH)

(BY MS. SWATI A. GEORGE - DY. GOVT. ADVOCATE)

This application coming on for admission this day, the
following:

ORDER

This is first application filed by applicant under Section 439 of Code of Criminal Procedure for grant of regular bail relating to FIR No.24/2023, registered at Police Station-Govindgarh, District-Rewa (MP) for the offence punishable under Section 392 of IPC.

2. Learned counsel appearing for the applicant submitted that it is a case of cash snatching and case of cash snatching will not fall within definition of rape as given under Section 390 of IPC. As per prosecution story, applicant has forcefully taken away the bag belonging to complainant but while doing the said act, no hurt or wrongful restraint has been caused and complainant was not put in fear of death or instant hurt. In these circumstances, applicant may be released on bail as offence under Section 379 of IPC is punishable for imprisonment of three years.

3 . Learned Government Advocate appearing for the State has opposed the bail application. It is submitted that applicant has committed robbery and not theft. Applicant has used force while snatching cash, which was withdrawn by complainant from bank.

4. Heard learned counsel for the parties.

5. On going through definition of robbery, criminal force has not been made as an ingredient of robbery. While committing robbery, there has to be instant wrongful restraint, hurt, fear of causing death or instant hurt. Said ingredients are not available in present case.

6. Considering aforesaid circumstances of the case, bail application filed by the applicant is allowed. It is directed that the applicant shall be released on bail on his furnishing personal bond in the sum of Rs.50,000/- (Rupees Fifty Thousand only) with one solvent surety in the like amount to the satisfaction of the trial court.

7. In addition to aforesaid condition, the applicant shall abide by the conditions enumerated in Section 437(3) of Cr.P.C.

Certified copy as per rules.

(VISHAL DHAGAT) JUDGE nd